

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982,
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK A/S,
MSC MEDITERRANEAN SHIPPING COMPANY S.A.,
OCEAN NETWORK EXPRESS PTE. LTD., WAN HAI
LINES LTD., YANG MING MARINE TRANSPORT
CORP., AND ZIM INTEGRATED SHIPPING
SERVICES,

Respondents.

FMC Docket No. 20-14

**COMPLAINANT’S RESPONSE TO RESPONDENTS’ STATEMENTS OF MATERIAL
FACTS AND COMPLAINANT’S SUPPLEMENTAL STATEMENT OF UNDISPUTED
MATERIAL FACTS**

Pursuant to 46 C.F.R. § 502.70(b), Complainant Intermodal Carriers Conference of the American Trucking Associations (“IMCC”) respectfully submits this response to the Statements of Fact filed by all Respondents and by Evergreen. *Infra*, pp. 2-68. Paragraphs 85-97 of Respondents’ Statement of Material Facts are identical to paragraphs 1-13 of Evergreen’s Statement of Material Facts. Complainant’s responses herein respond to both documents. Complainant further submits its Supplemental Statement of Undisputed Material Facts in support of its Response to Respondents’ Motions for Summary Decision. *Infra*, pp. 69-83.

Complainant

1. Complainant Intermodal Motor Carriers Conference of the American Trucking Associations (“IMCC”) is a conference of the American Trucking Associations, Inc. (“ATA”), a District of Columbia Corporation. Its business address is 950 North Glebe Road, Suite 210, Arlington, VA 22203. (STIP #1)¹

RESPONSE: Undisputed.

2. The IMCC’s membership includes ATA member companies engaged in the intermodal transportation of property who engage in the interchange of chassis in order to transport the Respondents’ ocean containers. (STIP #2)

RESPONSE: Disputed. ATA member companies of the IMCC engage in the interchange of chassis “with respect to the receipt and return of the Respondent ocean carriers’ containers as well as other ocean carriers not named as respondents in this proceeding.” STIP #2.

3. The Board of Directors of IMCC for 2020-2021 included owners and/or officers of the following motor carriers:

- a. Devine Intermodal (“Devine”)
- b. Triple G Express Inc. (“Triple G”)
- c. Best Transportation Inc. (“Best Transportation”)
- d. Reliable Transportation Specialists, Inc. (“Reliable”)
- e. Ability Tri-Modal Transportation Services (“Ability Tri-Modal”) (IMCC

Answers, No. 3)²

RESPONSE: Undisputed.

¹ “STIP #_” refers to the Stipulations Pursuant to 46 C.F.R. §502.207. A Confidential Restricted Version was transmitted to the Presiding Officer, and a redacted Public Version was filed with the FMC, on February 28, 2022.

² “IMCC Answers, No. __” refers to the answers to interrogatories in Complainant’s Responses and Objections to Respondents’ First Set of Interrogatories and Request for Production of Documents dated April 7, 2021, a copy of which is appended to the Appendix as Exhibit 1.

4. The Executive Committee of IMCC for 2020-2021 included owners and/or officers of the following motor carriers:

- a. The Evans Network of Companies (“Evans”)
- b. Intermodal Cartage Company (“IMC”)
- c. Container Port Group (“CPG”)
- d. TCW, Inc. (“TCW”) (IMCC Answers, no. 3)

RESPONSE: Undisputed.

NACPC and Its Owners

5. North American Chassis Pool Cooperative, LLC (“NACPC”) is an enterprise that has leased and rented chassis as an IEP. (STIP #191).

RESPONSE: Undisputed.

6. NACPC was formed by eleven motor carriers (NACPC.org/members; Manning Dep., p. 28; Chris Giltz Dep., p. 92; Mark George Dep., p. 99) (APP0063-APP0067; APP0073; APP0149; APP0174).

RESPONSE: Disputed. NACPC was formed by ten motor carriers. *North American Chassis Pool Cooperative, LLC - Pooling Application*, Docket No. MCF 21050 (Decision, Jan. 22, 2013), CX00001995³ at 995 (“NACPC is a limited liability company, currently comprising 10 motor carrier members[.]”).

7. Devine Intermodal is a motor carrier engaged in intermodal trucking, warehousing and logistics (devineintermodal.com) that is an owner of NACPC. (Manning Dep., p. 28; Mark George Dep., Exh. 28) (APP0073; APP0231-APP0233).

RESPONSE: Undisputed. However, this statement is irrelevant to any issue in this proceeding.

³ CX##### refers to Complainants’ Appendix.

8. Triple G is a motor carrier engaged in intermodal trucking (triplelexpress.com) that is an owner of NACPC. (Manning Dep., p. 126; Mark George Dep., Exh. 28) (APP0084; APP0231-APP0233).

RESPONSE: Undisputed. However, this statement is irrelevant to any issue in this proceeding.

9. Best Transportation is a motor carrier engaged in intermodal trucking, transloading and warehousing (besttrans.com) that is an owner of NACPC. (Manning Dep., p. 126; Mark George Dep., Exh. 28) (APP0084; APP0231-APP0233).

RESPONSE: Disputed. This statement is irrelevant to any issue in this proceeding.

Further, Best Transportation is not an owner of NACPC. *See* APP00231⁴ (not including Best Transportation in the list of NACPC members).

10. Reliable is a motor carrier that specializes in intermodal drayage (reliabletrans.com) that is an owner of NACPC. (Manning Dep., p. 126; Mark George Dep., Exh. 28) (APP0084 ; APP0231-APP0233).

RESPONSE: Undisputed. However, this statement is irrelevant to any issue in this proceeding.

11. Ability Tri-Modal is a motor carrier engaged in third party transportation, logistics, warehousing and distribution services (abilitytrimodal.com/our-mission), that is an owner of NACPC. (Manning Dep., p. 126; Mark George Dep., Exh. 28) (APP0084; APP0231-APP0233).

RESPONSE: Undisputed. However, this statement is irrelevant to any issue in this proceeding.

12. Evans is a motor carrier engaged in business as an intermodal drayage provider. (theenoc.com/about) Evans became an owner of NACPC after it was formed (Giltz Dep., p. 92; 94) (APP0149-APP0150) but sold back its shares to the company in 2020 (Giltz Dep., p. 95-6) (APP0151-APP0152).

⁴ APP#### refers to Respondents' Appendix.

RESPONSE: Undisputed. However, this statement is irrelevant to any issue in this proceeding.

13. IMC is a motor carrier engaged in the marine drayage business (Mark George Dep., p. 15) that is an owner of NACPC. (Mark George Dep., p. 100; Exh. 28) (APP0175; APP0231-APP0233).

RESPONSE: Undisputed. However, this statement is irrelevant to any issue in this proceeding.

14. CPG is a motor carrier engaged in the business of intermodal transportation and transportation brokerage (Glenn Ferhribach Dep., p. 14) (APP0318) that is an owner of NACPC. (Fehribach Dep., p. 67; Mark George Dep., Exh. 28) (APP0327; APP0231-APP0233).

RESPONSE: Undisputed. However, this statement is irrelevant to any issue in this proceeding.

15. TCW is a motor carrier engaged in intermodal and domestic transportation (Scott George Dep., p. 13) that is an owner of NACPC. (Scott George Dep., p. 83; Mark George Dep., Exh. 29) (APP0368; APP0234).

RESPONSE: Undisputed. However, this statement is irrelevant to any issue in this proceeding.

16. Each member of NACPC owns a [REDACTED] interest in the company. (Mark George Dep., p. 135, ll. 5 – 8; Exh. 28) (APP0179; APP0231-APP0233).

RESPONSE: Undisputed. However, this statement is irrelevant to any issue in this proceeding.

ChassisLeaseCo LLC and Its Owners

17. [REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Disputed. This statement is irrelevant to any issue in this proceeding.

Further, [REDACTED].

Undisputed that [REDACTED]
[REDACTED] [REDACTED] APP0249.

18. The members of CLC are:

- a. [REDACTED]
[REDACTED]
[REDACTED].
- b. [REDACTED]
[REDACTED].
- c. [REDACTED]
[REDACTED].
- d. [REDACTED]
[REDACTED].
- e. [REDACTED]
[REDACTED].
- f. [REDACTED]
[REDACTED].
- g. [REDACTED]
[REDACTED].

RESPONSE: Undisputed. However, this statement is irrelevant to any issue in this proceeding.

19. [REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Undisputed. However, this statement is irrelevant to any issue in this proceeding.

20. [REDACTED]
[REDACTED].

RESPONSE: Undisputed. However, this statement is irrelevant to any issue in this proceeding.

21. [REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Undisputed. However, this statement is irrelevant to any issue in this proceeding.

[REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Undisputed. However, this statement is irrelevant to any issue in this proceeding.

23. [REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Disputed. This statement is irrelevant to any issue in this proceeding.

Further, [REDACTED]

[REDACTED]. APP0298.

24. [REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Undisputed. However, this statement is irrelevant to any issue in this proceeding.

25. [REDACTED]

[REDACTED].

RESPONSE: Undisputed. However, this statement is irrelevant to any issue in this proceeding.

26. [REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Undisputed. However, this statement is irrelevant to any issue in this proceeding.

27. [REDACTED]

[REDACTED].

RESPONSE: Undisputed. However, this statement is irrelevant to any issue in this proceeding.

28. [REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Undisputed. However, this statement is irrelevant to any issue in this proceeding.

29. [REDACTED]

[REDACTED].

RESPONSE: Undisputed. However, this statement is irrelevant to any issue in this proceeding.

30. [REDACTED]

[REDACTED].

RESPONSE: Undisputed. However, this statement is irrelevant to any issue in this proceeding.

31. [REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Undisputed. However, this statement is irrelevant to any issue in this proceeding.

32. [REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Undisputed. However, this statement is irrelevant to any issue in this proceeding.

Intermodal Equipment Providers

33. Interpool, Inc. d/b/a TRAC Intermodal (“TRAC”) is an enterprise that has leased and rented chassis as an intermodal equipment provider (“IEP”). (STIP #188)

RESPONSE: Undisputed.

34. [REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Undisputed.

35. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Undisputed that TRAC [REDACTED].

Disputed to the extent the terms “[REDACTED]” and “[REDACTED]” are vague, ambiguous, and misleading.

Further disputed because admissible evidence controverts that [REDACTED]
[REDACTED] Wilson (CCM) Dep.,
CX00006212 at 179:21-24 ([REDACTED]
[REDACTED]); Coates Initial Expert
Report, CX00001524 at 543 ([REDACTED]
[REDACTED]); *id.* at 539 ([REDACTED]

[REDACTED]); Coates Dep., CX00000871 at 113:2-6 ([REDACTED]);
id. at 153:7-9 ([REDACTED]);
Coates Dep., CX00006172 at 160:9-23 ([REDACTED]);
[REDACTED]); see also
IMCC SUMF ¶¶ 682, 687.

36. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Disputed. Uncontroverted evidence in the record shows that [REDACTED]
[REDACTED].
Wilson (CCM) Dep., CX00006212 at 135:11-13 ([REDACTED]); see
also Wilson (CCM) Dep., CX00000490 at 98:24-25 ([REDACTED]); id. at 99:11-16 ([REDACTED]);
[REDACTED]); CX00004878 (Wilson Dep. Ex. 6) at 878-79 ([REDACTED]);
[REDACTED]).

Further disputed to the extent the phrase “ [REDACTED] ” is vague and ambiguous. Admissible evidence controverts Respondents’
statement. [REDACTED]
[REDACTED]. See
Coates Initial Expert Report, CX00001524 at 539 ([REDACTED]); Wilson (CCM)
Dep., CX00000490 at 100:6-19 ([REDACTED]);
[REDACTED]

[REDACTED]

[REDACTED]; *id.* at 117:20-118:12 ([REDACTED])

[REDACTED]; CX00004878 (Wilson Dep. Ex. 6) at 878 ([REDACTED])

[REDACTED]; Langenfeld Initial Expert Report, CX00001266 at ¶¶ 88-89, 97, Ex. 9 ([REDACTED])

[REDACTED]; May 7, 2019 CCE Board Meeting Presentation, CX00002441 at 445 ([REDACTED])

[REDACTED]; Oct. 23, 2018 CCE Board Meeting Presentation, CX00005010 at 056 ([REDACTED])

[REDACTED]; *see also* IMCC SUMF ¶¶ 658-76 (discussing how the lack of interoperable chassis pools increases supply chain inefficiencies and costs) .

Undisputed that TRAC [REDACTED].

37. Direct ChassisLink Inc. (“DCLI”) is an enterprise that has leased and rented chassis as an IEP. (STIP #189)

RESPONSE: Undisputed.

38. [REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Undisputed.

39. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Undisputed that DCLI [REDACTED].

Disputed to the extent the terms “[REDACTED]” and “[REDACTED]” are vague, ambiguous, and misleading.

Further disputed because admissible evidence controverts that DCLI [REDACTED]
[REDACTED] . Wilson (CCM) Dep.,
CX00006212 at 179:21-24 ([REDACTED]
[REDACTED]); Coates Initial Expert
Report, CX00001524 at 543 ([REDACTED]
[REDACTED]); *id.* at 539 ([REDACTED]
[REDACTED]); Coates Dep., CX00000871 at 113:2-6 ([REDACTED]
[REDACTED]);
id. at 153:7-9 ([REDACTED]);
Coates Dep., CX00006172 at 160:9-23 ([REDACTED]
[REDACTED]); *see also*
IMCC SUMF ¶¶ 682, 687.

40. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Disputed. Uncontroverted evidence in the record shows that [REDACTED]
[REDACTED] .
Wilson (CCM) Dep., CX00006212 at 135:11-13 ([REDACTED]
[REDACTED]); *see*
also Wilson (CCM) Dep., CX00000490 at 98:24-25 ([REDACTED]
[REDACTED]); *id.* at 99:11-16 ([REDACTED]
[REDACTED]); CX00004878 (Wilson Dep. Ex. 6) at 878-79 ([REDACTED]
[REDACTED]

[REDACTED]).

Further disputed to the extent the phrase “[REDACTED]” is vague and ambiguous. Admissible evidence controverts Respondents’ statement. [REDACTED]. See Coates Initial Expert Report, CX00001524 at 539 ([REDACTED]); Wilson (CCM) Dep., CX00000490 at 100:6-19 ([REDACTED]); *id.* at 117:20-118:12 ([REDACTED]); CX00004878 (Wilson Dep. Ex. 6) at 878 ([REDACTED]); Langenfeld Initial Expert Report, CX00001266 at ¶¶ 88-89, 97, Ex. 9 ([REDACTED]); May 7, 2019 CCE Board Meeting Presentation, CX00002441 at 445 ([REDACTED]); Oct. 23, 2018 CCE Board Meeting Presentation, CX00005010 at 056 ([REDACTED]); *see also* IMCC SUMF ¶¶ 658-76 (discussing how the lack of interoperable chassis pools increases supply chain inefficiencies and costs) .

Undisputed that DCLI [REDACTED].

41. Flexi-Van Leasing, Inc. (“Flexi-Van”) is an enterprise that has leased and rented chassis as an IEP. (STIP #190)

RESPONSE: Undisputed.

42. [REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Undisputed.

43. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Undisputed that Flexi-Van [REDACTED]
[REDACTED].

Disputed to the extent the terms “[REDACTED]” and “[REDACTED]” are vague, ambiguous, and misleading.

Further disputed because admissible evidence controverts that Flexi-Van [REDACTED]
[REDACTED] . Wilson (CCM)
Dep., CX00006212 at 179:21-24 ([REDACTED]
[REDACTED]); Coates Initial Expert
Report, CX00001524 at 543 ([REDACTED]
[REDACTED]); *id.* at 539 ([REDACTED]
[REDACTED]); Coates Dep., CX00000871 at 113:2-6 ([REDACTED]
[REDACTED]);
id. at 153:7-9 ([REDACTED]);
Coates Dep., CX00006172 at 160:9-23 ([REDACTED]
[REDACTED]); *see also*
IMCC SUMF ¶¶ 682, 687.

44. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Undisputed that Flexi-Van [REDACTED]
[REDACTED].

RESPONSE: Undisputed.

47. Respondent Ocean Carrier Equipment Management Association Inc. (“OCEMA”) is a District of Columbia non-profit corporation created and established pursuant to FMC Agreement No. 011284, effective July 6, 1990, originally entitled the “Equipment Interchange Discussion Agreement.” (STIP #3)

RESPONSE: Undisputed.

48. Effective April 18, 2000, the Equipment Interchange Discussion Agreement was renamed the “Ocean Carrier Equipment Management Association.” (STIP #5)

RESPONSE: Undisputed.

49. In 2005, the OCEMA Agreement was amended to include establishing and overseeing the operation of the chassis pools managed by Consolidated Chassis Management, LLC (“CCM”). (STIP #6)

RESPONSE: Undisputed.

50. Effective October 5, 2005, FMC Agreement No. 011284-58 permitted OCEMA discussions and agreements in Article 5.8 to include the establishment of chassis pools, as well as their use. (STIP #7)

RESPONSE: Undisputed.

51. The current version of the OCEMA Agreement is No. 011284-083, effective September 9, 2020. (STIP #8)

RESPONSE: Undisputed.

52. OCEMA’s business address is 1200 19th Street, N.W., 3rd Floor, Washington, D.C. 20036. (STIP #9)

RESPONSE: Undisputed.

53. OCEMA’s Senior Steering Committee has been comprised of representatives of OCEMA members. (STIP #11)

RESPONSE: Undisputed.

54. OCEMA business and operating decisions are made by OCEMA’s Executive Committee, comprised of representatives of OCEMA members. (STIP #12)

RESPONSE: Undisputed.

Consolidated Chassis Management, LLC

55. CCM, its affiliates, and its affiliated pools are created pursuant to, and have operated pursuant to, the Consolidated Chassis Management Pool Agreement (“CCMP Agreement”), FMC Agreement No. 011962, the current version of which is FMC Agreement No. 011962-018, effective January 30, 2021. (STIP #14)

RESPONSE: Undisputed.

56. CCM is a Delaware limited liability company. CCM’s principal place of business is located at 500 International Drive, Suite 130, Budd Lake, NJ 07828. (STIP #15)

RESPONSE: Undisputed.

57. Parties to the CCMP Agreement include OCEMA and its members, as well as CCM and its affiliates. (STIP #16)

RESPONSE: Undisputed.

CMA-CGM

58. Respondent CMA CGM S.A. (“CMA”), conducting business in the United States through CMA CGM (America) LLC, is a French global ocean carrier company founded in 1978 and located at 4, Quai D’Arenc, P.O. Box 2409, 13215 Marseilles Cedex 02, France. CMA CGM (America) LLC’s U.S. office is located at 5701 Lake Wright Drive, Norfolk, VA 23502. (STIP #22)

RESPONSE: Undisputed.

59. CMA has provided and continues to provide transportation of containers to and from the United States using its port-to-port, inland intermodal, and store-door tariff rates. (STIP #33)

RESPONSE: Undisputed.

60. CMA’s ocean transportation, inland intermodal transportation, and store-door tariff rates are subject to rules tariffs issued by CMA. (STIP #34)

RESPONSE: Undisputed.

61. CMA also negotiates service contracts with its customers for the provision of its container transportation services. Such service contracts may modify the terms and conditions of the otherwise applicable CMA tariffs. (STIP #35)

RESPONSE: Undisputed.

62. CMA CGM has offered open choice, i.e., choice without carrier approval, in CCM pools since late 2018. [REDACTED]

[REDACTED].

RESPONSE: Undisputed.

63. Prior to late 2018, CMA CGM offered choice with approval by CMA CGM and notice to its chassis provider. [REDACTED].

RESPONSE: Undisputed.

64. Interoperable pools can result in higher chassis costs for ocean carriers than single-provider pools. [REDACTED]

[REDACTED].

RESPONSE: Disputed as vague and ambiguous. The cited material does not support the misleading generalization of one ocean carrier’s testimony to all Respondents.

Undisputed that [REDACTED]
[REDACTED].

65. Single-provider pools do not always offer ocean carriers lower chassis costs than interoperable pools. [REDACTED].

RESPONSE: Disputed as vague and ambiguous. The cited material does not support the misleading generalization of one ocean carrier’s testimony to all Respondents.

Undisputed that [REDACTED].

66. There are many factors, in addition to cost, that influence a carrier’s decision as to the source of chassis. [REDACTED].

RESPONSE: Disputed as vague and ambiguous. The cited material does not support the misleading generalization of one ocean carrier’s testimony to all Respondents. Admissible evidence demonstrates that [REDACTED]

[REDACTED]. Houghtalin (COSCO) Dep., CX0000337 at 327:6-15 ([REDACTED]);
Barattini (Hapag-Lloyd) (10/01/2021) Dep., CX00000654 at 193:11-194:25 ([REDACTED]);
[REDACTED]; Roveccio (MSC) Dep., CX00006234 at 184:25-185:4 ([REDACTED]);
[REDACTED]; *id.* at 203:11-18 ([REDACTED]);
[REDACTED]; Micena (Yang Ming) Dep., CX000000001 at 312:20-313:2 ([REDACTED]).

Undisputed that there are secondary factors to cost that ocean carriers consider when deciding how to source chassis.

67. There is no evidence in the record that CMA CGM denied a request for choice.

RESPONSE: Disputed to the extent that [REDACTED]. See Fentress (CMA) Dep., CX00000916 at 223:10-18 ([REDACTED]).

Further disputed as ambiguous and vague as to time period. CMA’s corporate witness testified that [REDACTED]. *Id.* at 118:25-119:7 ([REDACTED]).

[REDACTED]).

68. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Undisputed.⁵

69. [REDACTED]

[REDACTED].

RESPONSE: Undisputed.

70. [REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Undisputed.

COSCO

71. COSCO, conducting business in the United States through COSCO Shipping (North America) Inc., is a Chinese global ocean carrier company founded in 1964 and located at No. 378 Dong Da Ming Road, Shanghai, 200080, People’s Republic of China. COSCO’s U.S. office is located at 100 Lighting Way, Secaucus, NJ 07094. (STIP #37).

RESPONSE: Undisputed.

72. COSCO has provided and continues to provide transportation of containers to and from the United States using its port-to-port, inland intermodal, and store-door tariff rates. (STIP #50).

⁵ The [REDACTED] can be found at CX0002536.

RESPONSE: Undisputed.

73. COSCO's ocean transportation, inland intermodal transportation, and store-door tariff rates are subject to rules tariffs issued by COSCO. (STIP #51).

RESPONSE: Undisputed.

74. COSCO also negotiates service contracts with its customers for the provision of its container transportation services. Such service contracts may modify the terms and conditions of the otherwise applicable COSCO tariffs. (STIP #52).

RESPONSE: Undisputed.

75. COSCO has always permitted Choice upon request for MH moves in chassis pools where Choice is available. ([REDACTED]); <https://www.ccmpool.com/Membership/Chassis-Providers/> ([REDACTED]).

RESPONSE: Disputed. The cited material does not support that COSCO has *always* permitted Choice upon request for MH moves in *every* chassis pool where Choice is available. Undisputed that [REDACTED]. APP1790-APP1791. Further undisputed that as of April 23, 2022, COSCO’s selected chassis provision option for the SACP and MCCP on CCM’s website was listed as “Trac Intermodal provides chassis unless exception requested[.]” IMCC SUMF ¶ 87.

76.

RESPONSE: Disputed to the extent that [REDACTED]
[REDACTED]. *See* Fentress (CMA) Dep., CX00000916 at 223:10-18 ([REDACTED]
[REDACTED]
[REDACTED]); *see also* Houghtalin (COSCO) Dep., CX00000337 at 195:24-25, CX00006310 at 196:2-14 ([REDACTED]

(COSCO) Dep., CX00000337 at 332:10-18 ([REDACTED]); Houghtalin

[REDACTED]

77. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Undisputed.

78. [REDACTED]

[REDACTED].

RESPONSE: Undisputed.

79. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Undisputed.

80. [REDACTED]

[REDACTED].

RESPONSE: Undisputed.

81. [REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Undisputed.

82. [REDACTED]

RESPONSE: Undisputed.

83. [REDACTED]

RESPONSE: Undisputed.

84. [REDACTED]

RESPONSE: Undisputed.

Evergreen

85. Respondent Evergreen Line Joint Service Agreement, FMC No. 011982 (“Evergreen”) is a joint service agreement between Evergreen Marine Corp. (Taiwan) Ltd., Italia Marittima S.P.A., Evergreen Marine (Singapore) Pte Ltd, Evergreen Marine (UK) Ltd., and Evergreen Marine (Hong Kong) Ltd., FMC Agreement No. 011982 and located at No. 163, Sec. 1, Hsin-Nan Road, Luchu Hsian, Taoyuan Hsien, 338, Taiwan. (STIP #54)

RESPONSE: Undisputed.⁶

86. Evergreen has conducted business in the United States through Evergreen Shipping Agency (America) Corporation, located at One Evertrust Plaza, Jersey City, NJ 07302. (STIP #55)

RESPONSE: Undisputed.

⁶ Paragraphs 85-97 of Respondents’ Statement of Material Facts are identical to paragraphs 1-13 of Evergreen’s Statement of Material Facts. The responses set forth here respond to both documents.

87. Evergreen publishes tariffs for the transportation of cargo containers to and from ports and/or points in the United States. (STIP #62) The provisions of these tariffs are summarized in STIP #63-67.

RESPONSE: Undisputed.

RESPONSE: Undisputed.

89. Evergreen provides chassis to its customers for use by the customers' designated motor carriers moving the cargo of Evergreen's customers on an MH basis. (STIP #63 and 64)

RESPONSE: Undisputed.

90. If an Evergreen customer chooses to have its motor carrier use a chassis other than one provided by Evergreen for MH shipments, the customer and its motor carrier can use their own chassis or a chassis provided by an IEP selected by the motor carrier or the customer. (STIP #63-#65; [REDACTED])

RESPONSE: Disputed that motor carriers supplying their own chassis is a viable alternative. Coates Dep., CX00000871 at 169:10-170:5 (Respondents' industry expert testifying that [REDACTED])

); *see also id.* at 172:17-23 (

); Compton (HMM) Dep., CX00006153 at 153:23-155:13 (

[REDACTED]
[REDACTED]
[REDACTED]; Scott George (TCW) Dep., CX00000640 at 154:9-12 ([REDACTED]
[REDACTED]); Giltz
(Evans Delivery) Dep., CX00000186 at 160:20-161:16 ([REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]; “A Single Gray Chassis Pool Fosters Fluid Commerce and
Improves Supply Chain Velocity,” CX00006147 at 148 (“In Memphis, like all inland rail hubs,
shippers and truckers do not have a choice on chassis provisioning when rail operators have a
mounted operational procedure. Containers are available as a mounted unit; shippers and
truckers must take the unit as tendered or wait in line for a flip fee to move that container onto
another chassis.”); Roveccio (MSC) Dep., CX00000799 at 50:17-51:4 ([REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]; Coates Initial Expert
Report, CX00001524 at 538 (Respondents’ industry expert stating that [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]; IMCC SUMF ¶¶ 694-713 (describing financial and practical barriers to motor carrier
substitution of owned or leased chassis for daily rental chassis).

91. If its customer wants Evergreen to provide the chassis for an MH movement, the
customer pays Evergreen a Chassis Usage Charge. (STIP #63-65; [REDACTED]
[REDACTED])

RESPONSE: Undisputed.

92. If its customer pays a Chassis Usage Charge for an MH shipment, Evergreen
makes the chassis available to the motor carrier free of charge for the day of delivery plus 4
business days, Saturdays, Sundays, holidays excluded. ([REDACTED]; STIP
#63 - 65; [REDACTED]).

RESPONSE: Disputed that Evergreen supplies the chassis “free of charge.” Undisputed that Evergreen [REDACTED]. IMCC SUMF ¶ 94; IMCC Supp. SUMF ¶ 19.⁷

93. [REDACTED]

[REDACTED].

RESPONSE: Disputed. Evergreen [REDACTED]. IMCC SUMF ¶ 93; IMCC Supp. SUMF ¶ 20; *infra* ¶ 95.

94. The chassis provided by Evergreen to motor carriers, moving their customers’ cargo on an MH basis, are interchanged pursuant to the terms of the Uniform Intermodal Interchange Agreement, Evergreen’s addendum thereto and Evergreen’s tariff. (STIP #63 - 65; [REDACTED]).

RESPONSE: Undisputed.

95. The only charge that Evergreen will potentially invoice to a motor carrier is for *per diem*, which is a charge that is assessed if the chassis is not returned by the motor carrier within the free time period described above. (STIP #63 - 65; [REDACTED]).

RESPONSE: Disputed that the time period covered by the CUC charged to the shipper is “free time.” Wang (Evergreen) Dep., CX00000773 at 37:12-17 ([REDACTED]).

Further disputed because the cited material does not support that per diems are the “only” charge Evergreen will invoice to a motor carrier. Wang (Evergreen) Dep., APP0614-APP0615 at 38:11-39:2 (testifying only that [REDACTED]); Wang (Evergreen) Dep., APP0618 at 122:9-16 (testifying only that [REDACTED]).

Undisputed that Evergreen levies per diems on motor carriers. IMCC SUMF ¶ 93; IMCC Supp. SUMF ¶ 20.

⁷ IMCC Supp. SUMF refers to Complainant’s Supplemental Statement of Undisputed Material Facts. *Infra*, pp. 69-83.

96. If the motor carrier does not return the chassis within the free time period, Evergreen assesses a per diem charge at a rate of \$20 per day, commencing the day after free time expires and running until the day that the chassis is returned. ([REDACTED] [REDACTED]; STIP #63 - 65).

RESPONSE: Disputed that the time period covered by the CUC charged to the shipper is “free time.” Wang (Evergreen) Dep., CX00000773 at 37:12-17 ([REDACTED] [REDACTED]).

Undisputed that the per diem Evergreen charges motor carriers is \$20 per day. [REDACTED].

97. Evidence in the record confirms that, on those occasions when Evergreen has charged per diem, the motor carrier marks up and invoices the per diem charge to its customer. [REDACTED].

RESPONSE: Disputed. The supporting citation shows only that [REDACTED].

Admissible evidence also controverts this statement. Motor carriers testified that [REDACTED] [REDACTED]. Kelso (Tri-Modal) Dep., CX00006219 at 27:18-222 ([REDACTED] [REDACTED]); Kelso (Tri-Modal) Dep., APP0395-APP0396 at 28:19-29:9 ([REDACTED] [REDACTED]); Lhotak (Reliable) Dep., CX00006203 at 74:13-77:6 (testifying [REDACTED] [REDACTED]).

98. [REDACTED]
[REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Undisputed.

99. [REDACTED]

[REDACTED].

RESPONSE: Undisputed.

100. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Undisputed.

Hapag-Lloyd

101. Respondent Hapag-Lloyd AG (“Hapag-Lloyd”), conducting business in the United States through Hapag-Lloyd (America) LLC, is a German global container carrier company founded in 1970 and located at Ballindamm 25, 20095 Hamburg, Germany. Hapag-Lloyd (America) LLC’s U.S. address is 399 Hoes Lane, Piscataway, NJ 08854. (STIP #69)

RESPONSE: Undisputed.

102. Hapag-Lloyd supports Choice and has consistently supported Choice. ([REDACTED])

[REDACTED]).

RESPONSE: Disputed to the extent that “consistently” is vague and ambiguous.

Undisputed that Barattini testified that Hapag-Lloyd has “[REDACTED]
[REDACTED]” Barattini (Hapag-Lloyd)
(10/01/2021) Dep., APP0661 at 96:2-4.

103. Hapag-Lloyd has an established practice of approving all Choice requests from BCOs and motor carriers, or through requests routed through CCM. ([REDACTED] [REDACTED]).

RESPONSE: Disputed to the extent that Hapag-Lloyd has [REDACTED]. See CX00004089 at 091-92 ([REDACTED] [REDACTED]); Fentress (CMA) Dep., CX00000916 at 223:10-18 ([REDACTED] [REDACTED]).

[REDACTED]
[REDACTED]

RESPONSE: Disputed. The cited material does not support that Hapag-Lloyd [REDACTED]
[REDACTED]:

[REDACTED]
CX00004115 (Barattini Dep. Ex. 13) at 130 (emphasis added). Further, Barattini testified that “[REDACTED]” Barattini (Hapag-Lloyd) (10/01/2021) Dep., CX00000654 at 155:19-23 (emphasis added).

105. [REDACTED]
[REDACTED] and there is no evidence in the record which shows that Hapag-Lloyd ever denied a Choice request. ([REDACTED])

RESPONSE: Disputed that choice requests were “[REDACTED],” which is vague, ambiguous, and misleading. Admissible evidence in the record controverts this statement. See

CX00003959 (Barattini Dep. Ex. 17) at 959 (Barattini: “[REDACTED]”).

106. [REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Disputed that Hapag-Lloyd “[REDACTED]” as vague, ambiguous, and misleading. Admissible evidence controverts this statement. Hapag-Lloyd [REDACTED]
[REDACTED]” CX00004101 at 103; *see also* Barattini (Hapag-Lloyd) (10/01/2021), APP0662-APP0663 at 123:19-124:3 ([REDACTED]).

107. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Disputed to the extent that “[REDACTED]” is vague, ambiguous, and misleading. IMCC’s expert testified as follows: “[REDACTED]
[REDACTED]
[REDACTED]” Rodrigue Dep., APP0515 at 137:7-18.

Further disputed to the extent that Dr. Rodrigue’s testimony was [REDACTED]
[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 112.

Undisputed that Hapag-Lloyd’s “[REDACTED]” provision [REDACTED]
[REDACTED]. Coates Dep., CX00000871 at 265:20-266:4 (testifying that [REDACTED]).

[REDACTED]

108. [REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Undisputed.

109. [REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Undisputed.

110. [REDACTED]

[REDACTED]

RESPONSE: Undisputed.

111. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Undisputed.

112. [REDACTED]

[REDACTED]

RESPONSE: Undisputed.

113. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Undisputed.

114. [REDACTED]

[REDACTED].

RESPONSE: Undisputed.

HMM

115. Respondent HMM Co. Ltd. (“HMM”) is a South Korean global ocean carrier company founded in 1976 and located at 194 Yulgok-ro, Jogno-gu, Seoul, Korea. HMM has conducted business in the United States through Hyundai America Shipping Agency Inc., located at 222 Las Colinas Blvd. W, Suite 7400, Irving, TX 75039. (STIP #84)

RESPONSE: Undisputed.

116. HMM has provided and continues to provide transportation of containers to and from the United States using its port-to-port, inland intermodal, and store-door tariff rates. (STIP #95)

RESPONSE: Undisputed.

117. HMM’s ocean transportation, inland intermodal transportation, and store-door tariff rates are subject to rules tariffs issued by HMM. (STIP #96)

RESPONSE: Undisputed.

118. HMM also negotiates service contracts with its customers for the provision of its container transportation services. Such service contracts may modify the terms and conditions of the otherwise applicable HMM tariffs. (STIP #97)

RESPONSE: Undisputed.

119. [REDACTED]
[REDACTED].

RESPONSE: Disputed. Admissible evidence in the record controverts this statement. HMM’s [REDACTED]
[REDACTED]. Compton (HMM) Dep., CX00000207 at 111:18-24.

120. [REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Undisputed.
[REDACTED]
[REDACTED]
[REDACTED]

RESPONSE: Undisputed.

122. [REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Disputed. HMM [REDACTED]
[REDACTED] Compton (HMM) Dep., CX00000207 at 140:14-22 ([REDACTED]
[REDACTED]
[REDACTED]; CX00004243 at 243 ([REDACTED]); CX00004267 at
267 ([REDACTED]); CX00004216 ([REDACTED]); CX00004245
([REDACTED]); CX00004271 at 271 ([REDACTED]);
CX00004273 at 273 ([REDACTED]).

123. [REDACTED]
[REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Undisputed.

124. [REDACTED]

[REDACTED].

RESPONSE: Undisputed.

125. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Undisputed.

126. [REDACTED]

[REDACTED].

RESPONSE: Undisputed.

Maersk

127. Respondent Maersk A/S (“Maersk”), conducting business in the United States through Maersk Agency U.S.A. Inc., is a Danish global ocean carrier company founded in 1904 and located at 50, Esplanaden, DK-1098 Copenhagen, Denmark. Maersk Agency U.S.A. Inc.’s U.S. office is located at 180 Park Avenue, Florham Park, NJ 07932. (STIP #99)

RESPONSE: Undisputed.

128. Maersk has provided and continues to provide transportation of containers to and from the United States using its port-to-port, inland intermodal, and store-door tariff rates. (STIP #110).

RESPONSE: Undisputed.

129. Maersk’s ocean transportation, inland intermodal transportation, and store-door tariff rates are subject to rules tariffs issued by Maersk. (STIP #111)

RESPONSE: Undisputed.

130. Maersk also negotiates service contracts with its customers for the provision of its container transportation services. Such service contracts may modify the terms and conditions of the otherwise applicable Maersk tariffs. (STIP #112)

RESPONSE: Undisputed.

131. Maersk authorizes Choice by exception for motor carriers and BCOs in pools where Choice is available. ([REDACTED])

RESPONSE: Undisputed.

132. [REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Disputed. Maersk’s [REDACTED]
[REDACTED]” IMCC SUMF ¶ 115;
CX00004709 (Weisberg Dep. Ex. 12). [REDACTED]
[REDACTED]. IMCC SUMF ¶ 119; Weisberg (Maersk) Dep.,
APP0852 at 125:5-8 ([REDACTED]).

Undisputed that [REDACTED].

133. [REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Disputed to the extent that [REDACTED]
[REDACTED]. APP0852-APP0853 at 125:18-126:3 ([REDACTED])

[REDACTED]

134. [REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Undisputed.

135. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Undisputed.

136. [REDACTED]

[REDACTED].

RESPONSE: Undisputed.

137. [REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Undisputed.

138. [REDACTED]

[REDACTED].

RESPONSE: Undisputed.

139. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Undisputed.

140. [REDACTED]

[REDACTED].

RESPONSE: Undisputed.

MSC

141. Respondent MSC Mediterranean Shipping Company S.A. (“MSC”), conducting business in the United States through Mediterranean Shipping Company (USA) Inc., is a global container shipping company founded in 1970 and headquartered at S.A. Chemin Rieu 12-14, 1208 Geneva, Switzerland. Mediterranean Shipping Company (USA) Inc.’s U.S. office is located at 420 5th Avenue, 8th Floor, New York, NY 10018. (STIP #114)

RESPONSE: Undisputed.

142. MSC provides chassis to its CH and MH customers under a business model in which MSC procures a chassis and then includes a chassis usage surcharge in its invoice to the Shipper. The relevant IEP with which MSC has a contractual relationship for such chassis usage then bills MSC for all such usage days. (STIP #125)

RESPONSE: Undisputed.

143. For import movements, the chassis surcharge is called a “Chassis Usage Charge” or “CUC.” For export movements, the chassis surcharge is called an “Export Chassis Usage” or “ECU.” (STIP #126)

RESPONSE: Undisputed.

144. The CUC and ECU charges are published by MSC in a tariff. (STIP #127)

RESPONSE: Undisputed.

145. MSC also negotiates service contracts with its customers for the provision of its container transportation services. Such service contracts may modify the terms and conditions of the otherwise applicable MSC tariffs. (STIP #128)

RESPONSE: Undisputed.

146. Motor carriers which obtain chassis through MSC to transport its containers do not pay chassis usage charges. ([REDACTED]).

RESPONSE: Disputed that motor carriers do not pay for the usage of chassis to transport MSC containers. Motor carriers [REDACTED] Roveccio (MSC) Dep., CX00000799 at 36:7-9; *see also id.* at 52:3-16 ([REDACTED]).

147. [REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Undisputed.

148. MSC makes chassis available to the motor carriers who transport containerized cargoes for its customers moving shipments on an MH basis, pursuant to the UIIA, MSC’s UIIA addendum and MSC’s tariff. ([REDACTED]).

RESPONSE: Undisputed.

149. Motor carriers receive the use of chassis for MH shipments free of charge for the day of delivery plus four business days (Saturdays, Sundays, and holidays excluded). ([REDACTED]).

RESPONSE: Disputed. MSC imposes a Chassis Usage Charge (“CUC”) on shippers for import shipments in, to, or through the U.S. CX00006288 (Roveccio Dep. Ex. 4) at 288. MSC’s base tariff for dry containers is \$80.00 per container and covers four working days of chassis usage. *Id.* [REDACTED]. *Supra*, ¶ 146.

150. If an MSC customer opts to have its motor carrier use a chassis other than one provided by MSC for an MH shipment, the customer and its motor carrier can use its own chassis or a chassis provided by an IEP and forego payment of the Chassis Usage Charge. ([REDACTED]).

RESPONSE: Disputed that motor carriers supplying their own chassis is a viable alternative. Coates Dep., CX00000871 at 169:10-170:5 (Respondents’ industry expert testifying that [REDACTED]

[REDACTED]); *see also id.* at 172:17-23 ([REDACTED]); Compton (HMM) Dep., CX00006153 at 153:23-155:13 ([REDACTED]); Scott George (TCW) Dep., CX00000640 at 154:9-12 ([REDACTED]); Giltz (Evans Delivery) Dep., CX00000186 at 160:20-161:16 ([REDACTED]); “A Single Gray Chassis Pool Fosters Fluid Commerce and Improves Supply Chain Velocity,” CX00006147 at 148 (“In Memphis, like all inland rail hubs,

shippers and truckers do not have a choice on chassis provisioning when rail operators have a mounted operational procedure. Containers are available as a mounted unit; shippers and truckers must take the unit as tendered or wait in line for a flip fee to move that container onto another chassis.”); Roveccio (MSC) Dep., CX00000799 at 50:17-51:4 ([REDACTED]); Coates Initial Expert Report, CX00001524 at 538 (Respondents’ industry expert stating that [REDACTED]); IMCC SUMF ¶¶ 694-713 (describing financial and practical barriers to motor carrier substitution of owned or leased chassis for daily rental chassis).

151. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Undisputed.

152. [REDACTED].

RESPONSE: Undisputed.

ONE

153. Respondent Ocean Network Express Pte. Ltd. (“ONE”), conducting business in the United States through its general agent, Ocean Network Express (North America) Inc., is a global ocean carrier company founded in 2017, with global headquarters located at 7 Straits View, #16-01 Marina One East Tower, Singapore 018936. Ocean Network Express (North America) Inc.’s U.S. address is 8730 Stony Point Parkway, Suite 400, Richmond, VA 23235. (STIP #129)

RESPONSE: Undisputed.

154. ONE is jointly owned by the Japanese shipping companies Nippon Yusen Kaisha, Mitsui O.S.K. Lines Ltd., and Kawasaki Kisen Kaisha Ltd. (K Line) through Ocean Network Express Holdings Ltd, Japan. (STIP #130)

RESPONSE: Undisputed.

155. ONE publishes tariffs for transportation of cargo containers to and from ports and/or points in the United States. (STIP #137)

RESPONSE: Undisputed.

156. ONE's tariffs contain port-to-port rates, under which ONE's customer, such as a BCO or NVOCC, is responsible for arranging for and obtaining rail and/or motor carrier transportation between the port and the customer's location. With respect to motor carrier transportation, this responsibility includes the responsibility for obtaining chassis. Such container movements are classified as merchant haulage (MH) moves by ONE. (STIP #138)

RESPONSE: Undisputed.

157. ONE's tariffs also contain rates to/from inland intermodal terminals. When a rate applies to a U.S. destination intermodal terminal, ONE is responsible for arranging and obtaining rail and/or motor carrier transportation between the port and the inland intermodal terminal. Under such rates, ONE's customer is responsible for arranging for and obtaining motor carrier transportation between the inland terminal and the final destination. This responsibility includes the responsibility for obtaining chassis. Such container movements are classified as merchant haulage (MH) moves by ONE. (STIP #139)

RESPONSE: Undisputed.

158. ONE's tariffs also contain rates to/from a specific customer location, which are referred to as store-door rates. Under a store-door rate, ONE is responsible for arranging and

obtaining rail and/or motor carrier transportation between a port or inland intermodal terminal and a customer’s location, including payment to a chassis provider for the chassis used in such a move. Such container movements are classified as carrier haulage (CH) moves by ONE. (STIP #140)

RESPONSE: Undisputed.

159. ONE has customers who obtain ocean transportation of containers using its port-to-port, inland intermodal, and store-door tariff rates. (STIP #141)

RESPONSE: Undisputed.

160. ONE’s ocean transportation, inland intermodal transportation, and store-door tariff rates are subject to rules tariffs issued by ONE. (STIP #142)

RESPONSE: Undisputed.

161. ONE also negotiates service contracts with its customers for the provision of its container transportation services. Such service contracts may modify the terms and conditions of the otherwise applicable ONE tariffs. (STIP #143)

RESPONSE: Undisputed.

162. ONE’s policy is to grant requests for Choice from motor carriers and BCOs. (<https://www.ccmpool.com/Membership/Chassis-Providers/>)

RESPONSE: Disputed. [REDACTED]. IMCC SUMF ¶¶ 138-39, 147-53; Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 93:2-12.

163. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Disputed. The cited material does not support that [REDACTED]
[REDACTED] Armstrong (ONE) (10/28/2021) Dep., APP1088 at 109:17-23 ([REDACTED]
[REDACTED]). There is no evidence to
demonstrate that [REDACTED]. For example, [REDACTED]
[REDACTED]. IMCC SUMF ¶ 149; CX00002468
(Armstrong Dep. Ex. 3) at 468-69.

164. [REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Disputed. The cited material does not support that [REDACTED]
[REDACTED]” [REDACTED]. APP0534 ([REDACTED]
[REDACTED]); APP0536-APP0539 ([REDACTED]
[REDACTED]); APP0553 ([REDACTED]
[REDACTED]); APP0555-APP0556 ([REDACTED]).
Undisputed that Respondents cite [REDACTED]
[REDACTED]. APP0530-APP0532; APP0544-APP0547.

165. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Undisputed.

166. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Undisputed.

167. [REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Undisputed.

168. [REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Undisputed.

169. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Undisputed.

170. [REDACTED]

[REDACTED].

RESPONSE: Undisputed.

Wan Hai

171. Respondent Wan Hai Lines Ltd (“Wan Hai”), conducting business in the United States through Wan Hai Lines (USA) Ltd., is a Taiwanese global ocean carrier company founded in 1965 and located at 10th Floor, No. 136, Sung Chiang Road, Taipei 10417, Taiwan. Wan Hai’s U.S. address is 301 E. Ocean Boulevard, #1650, Long Beach, CA 90802. (STIP #145)

RESPONSE: Undisputed.

172. Wan Hai has provided and continues to provide transportation of containers to and from the United States using its port-to-port, inland intermodal, and store-door tariff rates. (STIP #155)

RESPONSE: Undisputed.

173. Wan Hai’s ocean transportation, inland intermodal transportation, and store-door tariff rates are subject to rules tariffs issued by Wan Hai. (STIP #156)

RESPONSE: Undisputed.

174. Wan Hai also negotiates service contracts with its customers for the provision of its container transportation services. Such service contracts may modify the terms and conditions of the otherwise applicable Wan Hai tariffs. (STIP #157)

RESPONSE: Undisputed.

175. Prior to 2016, Wan Hai provided and paid for chassis for all CH and MH moves. ([REDACTED]).

RESPONSE: Undisputed.

176. Wan Hai grants blanket approval of Choice requests through direct notification by a motor carrier to its IEP, TRAC; and, if requests are received by Wan Hai, the requests are directed to TRAC for approval. ([REDACTED]).

RESPONSE: Disputed that Wan Hai [REDACTED]
[REDACTED]. IMCC SUMF ¶ 159; Chung (Wan Hai) Dep., CX00000304 at 88:25-89:7.

Undisputed that [REDACTED]. IMCC SUMF ¶¶ 157-58; Chung (Wan Hai) Dep., CX00000304 at 88:10-89:7.

177. [REDACTED]
[REDACTED]).

RESPONSE: Disputed. [REDACTED]
[REDACTED]. IMCC SUMF ¶ 50; Mar. 5, 2018 Email from Frank Grossi (COSCO)

to Stacy Normington (OCEMA), CX00002488 at 488 ([REDACTED]).

178. Wan Hai permits Choice by motor carriers in the SACP subject to TRAC’s approval, which is regularly granted. ([REDACTED]).

RESPONSE: Disputed. The cited material does not support that TRAC “regularly” grants approval for motor carriers moving Wan Hai’s containers in the SACP to exercise choice. SUMF ¶ 159; Chung (Wan Hai) Dep., CX00000304 at 89:14-90:12 (testifying that [REDACTED]).

179. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Undisputed.

180. [REDACTED]
[REDACTED].

RESPONSE: Undisputed.

181. [REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Undisputed.

Yang Ming

182. Respondent Yang Ming Marine Transport Corp. (“Yang Ming”) is a Taiwanese global ocean carrier company founded in 1972 and located at 271 Ming De 1st Road, Cidu

District, Keelung 20646, Taiwan, Republic of China. Yang Ming has conducted business in the United States through Yang Ming (America) Corporation, whose office is located at One Newark Center, 1085 Raymond Boulevard, 9th Floor, Newark, NJ 07202. (STIP #159)

RESPONSE: Undisputed.

183. Yang Ming has a policy of approving all requests for Choice. ([REDACTED]).

RESPONSE: Disputed that Yang Ming had or has a policy of approving *all* requests for Choice. CX00004460 at 460 ([REDACTED]); CX00002457 ([REDACTED]); Micena (Yang Ming) Dep., CX00000001 at 364:3-365:12 (testifying that [REDACTED]); *id.* at 366:6-15 (testifying that [REDACTED]).

184. [REDACTED].

RESPONSE: Disputed. [REDACTED]. Micena (Yang Ming) Dep., CX00000001 at 364:3-365:12 (testifying that [REDACTED]); *id.* at 366:6-15 (testifying that [REDACTED]).

185. The record lacks any evidence demonstrating denial of Choice requests made to Yang Ming.

RESPONSE: Disputed. Admissible evidence controverts this statement. CX00004660 at 460 ([REDACTED]); *see also* IMCC SUMF ¶ 163.

Further disputed to the extent that Yang Ming has [REDACTED]
[REDACTED]. See Fentress (CMA) Dep., CX00000916 at 223:10-18 ([REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]; see also Micena (Yang Ming) Dep., CX00000001 at 369:19-370:7 (testifying that [REDACTED]
[REDACTED]).

186. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Disputed because Respondents’ quotation of Dr. Rodrigue’s testimony is incomplete. IMCC’s expert testified as follows: “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]” Rodrigue Dep., APP0515 at 137:7-18.

Further disputed to the extent that Dr. Rodrigue’s testimony was [REDACTED]
[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 112.

Undisputed that Yang Ming’s [REDACTED]
[REDACTED]. Coates Dep., CX00000871 at 265:20-266:4 (testifying that [REDACTED]
[REDACTED]
[REDACTED]).

187. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Disputed because Respondents’ quotation of Dr. Rodrigue’s testimony is incomplete. IMCC’s expert testified as follows: “[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]” Rodrigue Dep., APP0515 at 137:7-18.

Further disputed to the extent that Dr. Rodrigue’s testimony was [REDACTED]
[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 112.

Undisputed that Yang Ming’s “[REDACTED]” [REDACTED]. Coates Dep., CX00000871 at 265:20-266:4 (testifying that [REDACTED]
[REDACTED]).⁸

188. [REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Undisputed.

189. [REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Disputed. Respondents misstate Dr. Rodrigue’s testimony. IMCC’s expert testified that [REDACTED]
[REDACTED]” Rodrigue Dep., APP0517 at 177:7-13.

Further disputed because admissible evidence demonstrates that Yang Ming [REDACTED]
[REDACTED]. CX00004460 at 460 ([REDACTED]
[REDACTED]); *see also* IMCC SUMF ¶ 163.

⁸ The cited quote in ¶ 187 is identical to that in ¶¶ 107 and 186.

190. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Undisputed.

191. [REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Undisputed.

ZIM

192. Respondent ZIM Integrated Shipping Services (“ZIM”), conducting business in the United States through ZIM American Integrated Shipping Services Company, LLC is an Israeli global ocean carrier company founded in 1945, and located at 9 Andrei Sakharov St., “Matam” – Scientific Industries Center, P.O.B. 1723, Haifa 21016, Israel. ZIM American Shipping Services Company, LLC’s primary U.S. business address is 5801 Lake Wright Drive, Norfolk, VA 23502. (STIP #173)

RESPONSE: Undisputed.

193. ZIM has customers who obtain ocean transportation of containers using its port-to-port, inland intermodal, and store-door tariff rates. (STIP #184)

RESPONSE: Undisputed.

194. ZIM’s ocean transportation, inland intermodal transportation, and store-door tariff rates are subject to rules tariffs issued by ZIM. (STIP #185)

RESPONSE: Undisputed.

195. ZIM also negotiates service contracts with its customers for the provision of its container transportation services. Such service contracts may modify the terms and conditions of the otherwise applicable ZIM tariffs. (STIP #186)

RESPONSE: Undisputed.

196. [REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Undisputed.

197. There is no evidence in the record demonstrating that ZIM ever denied any request for choice. ([REDACTED]).

RESPONSE: Disputed to the extent that ZIM has [REDACTED]
[REDACTED]. See Messing (ZIM) Dep., CX00000260 at 143:14-17, 164:7-22 (testifying that [REDACTED]
[REDACTED]); Fentress (CMA) Dep., CX00000916 at 223:10-18 ([REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]).

198. [REDACTED]
[REDACTED]
[REDACTED]

RESPONSE: Disputed as misleading. The quotation from Dr. Rodrigue’s testimony and underlying report is incomplete. Dr. Rodrigue stated that “[REDACTED]
[REDACTED]”
Rodrigue Dep., APP0514-APP0515 at 136:22-137:4 (emphasis added); Rodrigue Initial Expert Report, CX00001362 at ¶ 112 (emphasis added). In his expert report, Dr. Rodrigue goes on to state that “[REDACTED]
[REDACTED]” Rodrigue Initial Expert Report, CX00001362 at ¶ 112.

Further disputed to the extent that Dr. Rodrigue’s testimony was [REDACTED]
[REDACTED]. *Id.*

Undisputed that ZIM’s “ [REDACTED] ” [REDACTED]
[REDACTED]. Coates Dep., CX00000871 at 265:20-266:4
(testifying that [REDACTED]
[REDACTED]).

199. [REDACTED]
[REDACTED].

RESPONSE: Disputed as misleading. Dr. Rodrigue testified that [REDACTED]
[REDACTED]” Rodrigue Dep., APP0515 at 137:9-15 (emphasis
added).

200. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Undisputed.

201. [REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Undisputed.

202. [REDACTED]
[REDACTED].

RESPONSE: Undisputed.

Chassis Pools

203. An interoperable chassis pool cannot exist if the IEPs do not agree to be part of the pool. ().

RESPONSE: Undisputed that [REDACTED]
[REDACTED]
[REDACTED]. *See, e.g.*, CX00002536 (Fentress Dep. Ex. 19) at 540
([REDACTED]
[REDACTED]); Fentress (CMA) Dep., CX00000916 at 218:10-219:7
([REDACTED]
[REDACTED]; CX00003121 (Houghtalin Dep. Ex.
12) at 121, 131 ([REDACTED]
[REDACTED]; CX00004115 (Barattini Dep. Ex. 13) at
129, 142 ([REDACTED]
[REDACTED]; CX00005859 (Micena Dep. Ex. 18) at 859, 871 ([REDACTED]
[REDACTED]; CX00006040 (Messing Dep. Ex. 18) at
040, 043 ([REDACTED]
[REDACTED]
[REDACTED]).

Disputed that [REDACTED]
[REDACTED]. For example, admissible evidence shows that the
[REDACTED] Lawrence (OCEMA) Dep., CX00000448 at 90:21-92:21 ([REDACTED])
[REDACTED]; Sept. 23, 2014 U.S.
Dep't of Justice, Antitrust Division Letter "Re: Flexi-Van Leasing, Inc. and Direct ChassisLink,
Inc. Business Review Letter Request," CX00006307 at 308 ("[Flexi-Van and DCLI] represent
that after a period of initial implementation, the parties intend to permit open participation by any
other pools and third parties in the LA/LB port complex.").

204. The IEPs, and not the ocean carriers, decide whether to join or withdraw from chassis pools. ([REDACTED] [REDACTED]).

RESPONSE: Disputed. [REDACTED] . See IMCC SUMF ¶¶ 546-610 ([REDACTED]
[REDACTED]); see also Compton
(HMM) Dep., CX00000207 at 163:22-164:3 ([REDACTED]
[REDACTED]); Micena
(Yang Ming) Dep., CX00000001 at 401:15-25 ([REDACTED]
[REDACTED]) (emphasis
added); Fentress (CMA) Dep., CX00000916 at 185:12-186:4 ([REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]; Houghtalin (COSCO) Dep., CX00006197 at 183:20-184:4
(
[REDACTED]).

205. An IEP can withdraw its equipment from a chassis pool without the ocean carrier's permission. ([REDACTED]).

RESPONSE: Disputed. [REDACTED]
[REDACTED] . See IMCC SUMF ¶¶ 546-610
([REDACTED]
[REDACTED]); see
also *supra* ¶ 204.
[REDACTED]
[REDACTED] . See, e.g.,
CX00003143 (Houghtalin Dep. Ex. 25) at 144 ([REDACTED]
[REDACTED]).

206. The ocean carrier has to follow the IEP to whatever pools the IEP chooses. ([REDACTED]
[REDACTED])

RESPONSE: Disputed. [REDACTED]
[REDACTED] . See Compton
(HMM) Dep., CX00000207 at 163:22-164:3 ([REDACTED]
[REDACTED]); IMCC
SUMF ¶¶ 546-610 ([REDACTED]
[REDACTED]); *see also supra* ¶ 204.

Further disputed because cited material does not support this statement. Tom Wang’s testimony was that “[REDACTED]
[REDACTED]” APP0619-
APP0620 (emphasis added). This testimony was in reference to [REDACTED]
[REDACTED] . IMCC SUMF ¶ 563; CX00003647 at 647.

207. GCCP served ports and intermodal terminals, including Houston, El Paso, and New Orleans. (STIP #201)

RESPONSE: Undisputed.

208. On August 19, 2020, GCCP formally closed, and GCCP’s contracts with chassis contributors and users terminated as of that date. (STIP #202)

RESPONSE: Undisputed.

209. COCP served intermodal terminals in the Midwest, including in Illinois, Indiana, and Ohio. (STIP #203)

RESPONSE: Undisputed.

210. On August 19, 2020, the COCP formally closed and COCP’s contracts with chassis contributors and users terminated as of that date. (STIP #204)

RESPONSE: Undisputed.

211. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Disputed. [REDACTED]
[REDACTED] CX00004872 (Wilson Dep. Ex. 14) at 875-76 ([REDACTED])
[REDACTED]
[REDACTED]; Wilson (CCM) Dep., CX00000490 at
235:13-22 ([REDACTED])
[REDACTED]
[REDACTED]; *see also* IMCC SUMF ¶¶ 547-48,
558, 560-81, 583-84, 598-608 ([REDACTED])
[REDACTED]; Wilson (CCM) Dep., CX00000490
at 41:6-13 ([REDACTED])
[REDACTED].

CCMP Operations Manual

212. The current version of the CCM Pools LLC (CCMP) Operations Manual, is version 4.4 effective July 20, 2020. (APP1799-APP1855).

RESPONSE: Disputed. The current version of the CMC Pools LLC (CCMP) Operations Manual is version 4.5 effective January 26, 2022. APP1799.

213. Section 5.5 of the CCM Pools LLC (CCMP) Operations Manual states: “Usage Days will be assigned by default to the User associated with the Container Line Operator for the container loaded on a Chassis (i.e., to either the User itself or to the User for whom the Container Line Operator is a customer).”

RESPONSE: Undisputed.

214. Section 5.6 of the CCMP Operations Manual states: “In the event that there is no Customer associated with a move, Chassis usage will be assigned to the immediately preceding User. In the event a motor carrier Customer uses a Pool Chassis to move a container for which the Container Line Operator is not a designated Customer, usage will be assigned to the User for which the motor carrier is a Customer.”

RESPONSE: Undisputed.

215. Section 5.7 of the CCMP Operations Manual states: “Notwithstanding Section 5.5, under the Choice Program, Usage Days may be directed to another User when the Container Line Operator and the User for whom the Container Line Operator is a Customer authorize a deviation from the default assignment. To utilize this program, the Container Line Operator must notify CCM that it allows exceptions: at the shipment level (based on booking or bill of lading reference); upon request and approval; based on the motor carrier (for merchant haulage moves); or for all merchant haulage moves (provided the Container Line Operator provides CCM with access to shipment data sufficient to make such assignments).”

RESPONSE: Undisputed.

216. Section 5.8 of the CCMP Operations Manual states: “If Container Line Operator allows Usage Days to be redirected on an exception basis and the specified criteria are met, the User will be determined through CCM’s chassis choice portal. In such instances, any on-terminal usage assigned following the loading of the Container Line Operator’s container under 5.12.1 shall be transferred to the User determined through the chassis choice portal.”

RESPONSE: Undisputed.

217. Section 5.9 of the CCMP Operations Manual states: “Exceptions shall be communicated to CCM in a format specified by CCM. Information indicating whether an

exception was applicable to a specific movement must be communicated to CCM by the earlier of thirty (30) days after the beginning of usage or within seven (7) days of the return of a Chassis.”

RESPONSE: Undisputed.

Merchant Haulage Rates

218. DCLI’s published daily market rates for chassis rental are publicly available at <https://dcli.com/chassis-fleet/daily-market-rates/>

RESPONSE: Undisputed.

219. Flexi-Van’s published daily rates for chassis rental are publicly available at <https://flexivan.com/daily-rentals/>

RESPONSE: Undisputed.

220. NACPC’s published daily rates for chassis rental are publicly available at <https://www.nacpc.org/pricing/>

RESPONSE: Undisputed.

221. There is no evidence in the record relating to how DCLI, Flexi-Van or TRAC determine their daily rates for chassis rental.

RESPONSE: Undisputed.

222. Motor carriers enter into contracts with DCLI, Flexi-Van, TRAC and NACPC which charge lower chassis rental rates in exchange for contractual volume commitments by the motor carrier. ([REDACTED] [REDACTED]).

RESPONSE: Disputed. The cited material does not support that DCLI, Flexi-Van, TRAC, and NACPC all enter into volume discount contracts. The testimony and exhibit cited in support of this statement demonstrates [REDACTED]

[REDACTED]. Fehribach (CPG) Dep., APP0319-APP0320 at 37:7-38:5; APP0335-APP0336.

Further disputed because [REDACTED]

[REDACTED]
[REDACTED]. See Coates Dep., CX00006172 at 43:10-13
[REDACTED]; Coates Dep., CX00000871 at 113:2-6 ([REDACTED]
[REDACTED]); id. at 153:7-9 ([REDACTED]
[REDACTED]; Coates Dep., CX00006172 at 160:9-23 ([REDACTED]
[REDACTED]
[REDACTED]; Lhotak (Reliable) Dep., CX00000477 at
40:22-41:5 ([REDACTED]
[REDACTED]).

Further disputed because the cited material does not support that NACPC offers volume discount contracts to motor carriers.

223. [REDACTED]

[REDACTED]
[REDACTED].

RESPONSE: Disputed to the extent that Respondents misleadingly imply that [REDACTED]
[REDACTED]
[REDACTED]. See, e.g., CX00004086 at 086 ([REDACTED]
[REDACTED]).
[REDACTED]. IMCC SUMF ¶¶ 496-521.

Lack of Harm

224. [REDACTED]

[REDACTED]
[REDACTED].

RESPONSE: Disputed as irrelevant to any issue in this proceeding. The Complaint is not admissible evidence.

Further disputed because admissible evidence shows that [REDACTED]
[REDACTED] . Rushforth Dep.,
CX00006230 at 67:19-24 ([REDACTED]
[REDACTED]); Manning Dep., APP0086 at 141:7-9 ([REDACTED]
[REDACTED]).

Further disputed because Dr. Langenfeld [REDACTED]
[REDACTED] . Langenfeld Rebuttal Expert Report, CX00001565 at
¶¶ 60-62 ([REDACTED]
[REDACTED]
[REDACTED]).

225. [REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Disputed. This statement is irrelevant to any issue in this proceeding.

Further disputed because admissible evidence shows that the “[REDACTED]” [REDACTED]
[REDACTED]
Rushforth Dep., CX00006230 at 67:19-24 ([REDACTED]
[REDACTED]); Manning Dep., APP0086 at 141:7-9 ([REDACTED]
[REDACTED]).

Further disputed because Dr. Langenfeld [REDACTED]
[REDACTED] . Langenfeld Rebuttal Expert Report, CX00001565 at
¶¶ 60-62 ([REDACTED]
[REDACTED]
[REDACTED]).

Undisputed that Mr. Manning testified that [REDACTED]
[REDACTED]” Manning Dep.,
APP0086 at 141:17-21.

226. [REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Disputed. This statement is irrelevant to any issue in this proceeding.

Further disputed because admissible evidence shows that [REDACTED] Rushforth Dep., CX00006230 at 67:19-24 ([REDACTED]); Manning Dep., APP0086 at 141:7-9 ([REDACTED]).

Further disputed because Dr. Langenfeld [REDACTED] Langenfeld Rebuttal Expert Report, CX00001565 at ¶¶ 60-62 ([REDACTED]).

Undisputed that Manning testified that [REDACTED]
[REDACTED]
[REDACTED]” Manning Dep., APP0086 at 141:10-16.

227. The [REDACTED] differential calculated by Mr. Manning does not constitute an overcharge by the ocean carrier Respondents.

RESPONSE: Disputed. This statement is irrelevant to any issue in this proceeding.

Further disputed because this statement is a conclusory and unsupported argument rather than a statement of fact.

Further disputed because Dr. Langenfeld [REDACTED] Langenfeld Rebuttal Expert Report, CX00001565 at ¶¶ 60-62 ([REDACTED]).

228. NACPC presently contributes approximately 21,000 chassis to the SACP, MCWP and MWCP pools. (Manning Dep., p. 39, l. 12 - 40, l. 11) (APP0075-APP0076).

RESPONSE: Disputed. The cited testimony does not support this statement. Manning estimated that, [REDACTED]. Manning Dep., APP0075-APP0076 at 39:12-40:14. As of [REDACTED], NACPC's contributions made up [REDACTED] % of the MCCC fleet of [REDACTED], [REDACTED] % of the SACP fleet of [REDACTED], and [REDACTED] % of the MWCP fleet of [REDACTED]. CX00002335 at 358-60.

229. NACPC provides approximately 5% of the 400,000 – 500,000 chassis volume used by Mr. Manning in his damages calculation.

RESPONSE: Disputed. This statement is irrelevant to any issue in this proceeding.

Also disputed because this statement is conclusory and is not supported by any citation to the record.

Further disputed because admissible evidence shows that [REDACTED]. Rushforth Dep., CX00006230 at 67:19-24 ([REDACTED]); Manning Dep., APP0086 at 141:7-9 ([REDACTED]).

Further disputed because Dr. Langenfeld [REDACTED]. Langenfeld Rebuttal Expert Report, CX00001565 at ¶¶ 60-62 ([REDACTED]).

230. Motor carriers negotiate chassis usage rates with IEPs that are lower than the chassis usage rates charged by NACPC. ([REDACTED]).

RESPONSE: Disputed. The cited material does not support this statement. APP0335-APP0350 ([REDACTED]). See Coates Dep., CX00006172 at 43:10-13 ([REDACTED]).

[REDACTED]
[REDACTED]); Coates Dep., CX00000871 at 113:2-6 ([REDACTED]
[REDACTED]); *id.* at 153:7-9 ([REDACTED]
[REDACTED]); Coates Dep., CX00006172 at 160:9-23 ([REDACTED]
[REDACTED]
[REDACTED]); Lhotak (Reliable) Dep., CX00000477 at
40:22-41:5 ([REDACTED]
[REDACTED]).

231. Complainant has not adduced evidence supporting the \$1.8 billion in damages alleged in paragraph 82 of the Complaint.

RESPONSE: Disputed as an irrelevant and immaterial fact.

Further disputed because there is evidence in the record that [REDACTED]
[REDACTED] . Langenfeld Rebuttal Expert Report, CX00001565 at ¶¶ 60-62
(concluding that “[REDACTED]
[REDACTED]
[REDACTED] ”).

232. [REDACTED]
[REDACTED]
[REDACTED] .

RESPONSE: Disputed. This statement is irrelevant to any issue in this proceeding.

Further disputed because there is no evidence in the record regarding [REDACTED]
[REDACTED] . Byrd (Bulldog) Dep., CX00006223 at
35:8-17 ([REDACTED]
[REDACTED]).

Undisputed that [REDACTED]
[REDACTED] ” APP1452.

233. [REDACTED]

[REDACTED].

RESPONSE: Disputed. This statement is irrelevant to any issue in this proceeding.

Further disputed because the statement that [REDACTED] is conclusory and not supported by the cited material. [REDACTED]
[REDACTED] . APP1485-APP1572. [REDACTED]
[REDACTED] . See APP1493, APP1495, APP1501, APP1503, APP1516, APP1520, APP1528, APP1548, APP1551, APP1553, APP1557, APP1566, APP1568; see also Lhotak (Reliable) Dep., APP1480 at 122:10-15 ([REDACTED]
[REDACTED]).

234. [REDACTED]

RESPONSE: Disputed. This statement is irrelevant to any issue in this proceeding.

Also disputed because the statement that [REDACTED] is not supported by any citation to the record.

Further disputed because admissible evidence controverts that [REDACTED]
[REDACTED] . See, e.g., <https://flexivan.com/daily-rentals/>, CX00006292 (showing a \$40.00 rate in the Los Angeles, CA market and a \$35.00 rate in the Charleston, SC, Memphis, TN, Savannah, GA, Houston, TX, and Seattle, WA markets).

235. [REDACTED]

RESPONSE: Disputed. This statement is irrelevant to any issue in this proceeding.

Further disputed because admissible evidence controverts that [REDACTED]
[REDACTED]
[REDACTED]
Kelso (Tri-Modal) Dep., APP0395-APP0396 at 28:3-29:13.

Further disputed because admissible evidence controverts Respondents' statement. For example, [REDACTED]

. See, e.g., Kelso (Tri-Modal) Dep., CX00006219 at 27:18-22 ([REDACTED])

[REDACTED]; Lhotak (Reliable) Dep., CX00006203 at 74:13-77:6 (testifying [REDACTED])

[REDACTED], stating that [REDACTED]

[REDACTED] (75:15-17) and that [REDACTED]

[REDACTED] (76:14-20)); Mark George (IMC) Dep., CX00006209 at 33:2-5 ([REDACTED])

[REDACTED]).

239. There is no evidence in the record that the shipping public has complained about alleged overcharges for chassis usage.

RESPONSE: Disputed. This is a conclusory argument rather than a statement of fact. Furthermore, there is evidence in the record that the shipping public has complained about overcharges for chassis usage. Langenfeld Initial Expert Report, CX00001266 at ¶ 104; *see also* CX00002436 (Wilson Dep. Ex. 9) at 438 ([REDACTED])

[REDACTED]; June 5, 2020 Email from James Ford-Hutchinson (Flexport) to Daewon Kim (HMM), CX00004245 (Compton Dep. Ex. 18) at 255 ([REDACTED])

[REDACTED]; "A Single Gray Chassis Pool Fosters Fluid Commerce and Improves Supply Chain Velocity," CX00006147 at 148 (The Memphis Supply Chain Innovation Team, comprised of shippers, ocean carriers, railroads, chassis pool contributors, and motor carriers, found that part of the chassis supply problem in Memphis was that "Chassis costs are rising on merchant haulage moves and costs are subsidized by shippers/truckers who do not have a choice in the chassis provider that is designated without flip charges and extra time at mounted rail facilities.").

240. There is no evidence in the record that the shipping public has been harmed by the alleged overcharges for chassis usage alleged in the Complaint.

RESPONSE: Disputed. This is a conclusory argument rather than a statement of fact. Furthermore, there is evidence in the record that the shipping public has been harmed by overcharges for chassis usage. *See* "The Chassis 'CHOICE' Dilemma" Presentation, CX00002160 (Wilson Dep. Ex. 10) at 161 (stating that [REDACTED])

[REDACTED]

([REDACTED]); CX00004610 (Weisberg Dep. Ex. 19) at 612

[REDACTED]); Langenfeld Rebuttal Expert Report, CX00001565 at ¶¶ 60-62 (concluding that “

[REDACTED]

[REDACTED]”); “A Single Gray Chassis Pool Fosters Fluid Commerce and Improves Supply Chain Velocity,” CX00006147 at 148 (“Chassis costs are rising on merchant haulage moves and costs are subsidized by shippers/truckers who do not have a choice in the chassis provider that is designated without flip charges and extra time at mounted rail facilities.”); *see also* IMCC SUMF ¶¶ 658-76 (showing harms to the entire shipping chain from a lack of interoperability).

COMPLAINANT’S SUPPLEMENTAL STATEMENT OF UNDISPUTED MATERIAL FACTS

In addition to the Statement of Undisputed Material Facts supporting Complainant’s Motion for Summary Decision (filed April 29, 2022), and Complainants’ Response to Respondents’ Statements of Material Facts (*supra*), Complainant submits the following Supplemental Statement of Undisputed Material Facts in support of its Responses to Respondents’ Motions for Summary Decision.

1. In the Surface Transportation Board (“STB”)’s decision approving the formation of NACPC, the STB concluded:

Moreover, the terms of the agreement appear to be just and reasonable. 49 U.S.C. § 14302(c)(2). The agreement outlines the members’ plan to implement what appears to be an efficient chassis supply pooling model. The agreement provides for the admission of additional members and describes the procedure for the management of contributions, capital accounts, allocations, and distributions. The agreement also contains provisions that ensure that motor carriers would continue to operate independently and be allowed to acquire chassis for their own use. The Board has not received any comments suggesting that the terms of the agreement are unjust or unreasonable.

North American Chassis Pool Cooperative, LLC – Pooling Application, Docket No. MCF 21050 (Decision, January 22, 2013), CX00001995 at 998.

2. The Respondent ocean carriers “[REDACTED]” Coates Dep., CX00006172 at 63:15-18.

3. Respondents’ industry expert, Douglass Coates, and/or his current employer MICP Capital (“MICP”) and its predecessor Manalytics, have done paid consulting work for [REDACTED] prior to this matter. *Id.* at 56:5-60:5; *see also* CX00006293 (Coates Dep. Ex. 4) at 293.

4. Coates, MICP, and/or Manalytics have done paid consulting work for [REDACTED], prior to this matter. Coates Dep., CX00006172 at 61:7-63:15.

5. Coates, MICP, and/or Manalytics have done paid consulting work for [REDACTED] prior to this matter. *Id.* at 63:23-65:23 (testifying that [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]” (64:18-19) and “[REDACTED]” (64:4-5)).

6. Coates, MICP, and/or Manalytics have done paid consulting for [REDACTED] prior to this matter. *Id.* at 65:24-66:10.

7. Coates, MICP, and/or Manalytics have done paid consulting work for [REDACTED] prior to this matter. *Id.* at 66:11-67:12.

8. Coates, MICP, and/or Manalytics have done paid consulting work for [REDACTED] prior to this matter. *Id.* at 67:16-68:5 ([REDACTED]).

9. CCM's CEO Mike Wilson wrote in a confidential memorandum that, "[REDACTED]
[REDACTED]
[REDACTED]" CX00002436 (Wilson Dep. Ex. 9) at 439.

10. In the same confidential memorandum, Wilson wrote that:

Id. at 440.

11. In a November 25, 2015 presentation titled “ [REDACTED] ”
[REDACTED]
[REDACTED]

[REDACTED]” CX00004350 (Compton Dep. Ex. 10) at 358.

12. The November 25, 2015 presentation included [REDACTED]
[REDACTED].

[REDACTED]

Id.

13. COSCO’s deponent testified that [REDACTED]
[REDACTED]” Houghtalin (COSCO) Dep.,
CX00000337 at 326:24-327:15 ([REDACTED])
[REDACTED]
[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]); *see also* July 1, 2021

COSCO/TRAC CUA, CX00003143 (Houghtalin Dep. Ex. 25) at 153.

14. Dr. Langenfeld conducted an analysis that “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” Langenfeld

Rebuttal Expert Report, CX00001565 at ¶ 59.

15. Dr. Langenfeld described his analysis as follows:

60. [REDACTED]

61. [REDACTED]

Id. at ¶¶ 60-61.

16. Table 1 of Dr. Langenfeld’s Rebuttal Expert Report is an “[REDACTED]

[REDACTED]”

[REDACTED]

Id. at ¶ 61.

17. Focusing [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” *Id.* at ¶

62.

18. [REDACTED]

[REDACTED]

[REDACTED]. See Mark George (IMC) Dep., CX00006209 at 32:7-9 (testifying that [REDACTED]
[REDACTED]); *id.* at 33:2-5 ([REDACTED]
[REDACTED]
[REDACTED]); Kelso (Tri-Modal) Dep., APP0395 at 28:19-29:9 ([REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]).

19. Under Evergreen’s chassis model, [REDACTED]
[REDACTED]
[REDACTED]. Wang (Evergreen) Dep.,
CX00000773 at 35:23-36:13.

20. [REDACTED]
[REDACTED]. *Id.* at 36:14-38:4 (confirming that
[REDACTED]
[REDACTED]” (37:12-17)).

**I. RESPONDENT OCEAN CARRIERS’ TARIFFS ASSIGN RESPONSIBILITY
FOR THE PROVISION OF CHASSIS FOR MERCHANT HAULAGE
MOVEMENTS TO BCOS AND MOTOR CARRIERS.**

21. CMA’s Tariff Rule 500, titled “Chassis/Merchant Haulage U.S.,” states that:

Under normal circumstances, Carrier will not provide chassis for shipments designated for Port or CY pick-up or delivery. Shippers/Consignees are responsible to secure chassis at their expense prior to pick up or delivery of containers (empty or loaded) from the carriers nominated facility.

In any circumstance Carrier provides a Chassis in the U.S. for shipment moving under merchant haulage in the U.S. a Chassis Provision Charge will be assessed.

For determination of tariff Chassis Provision charge for the U.S. please refer to U.S. Detention rule 300[.]

CX00006241 (Fentress Dep. Ex. 2) at 273; *see also* Fentress (CMA) Dep., CX00000916 at 47:22-49:8 (testifying that [REDACTED]

[REDACTED]).

22. CMA's U.S. Detention Rule 300 states that:

In the event the Carrier provides a chassis for moves that are not CH moves for all ports except for Long Beach and Long Angeles port, a Chassis Provision Charge (CPC) of **\$200 per container** shall be assessed to the Motor Carrier. In the event that Carrier provides a chassis for moves that are not CH moves for Long Beach and Los Angeles, a Chassis Provision Charge (CPC) of **\$250 per container** shall be assessed to the Motor Carrier.

CX00006241 (Fentress Dep. Ex. 2) at 277 (emphasis in original).

23. COSCO's Tariff 201, titled "Chassis Usage in the U.S.A.," states that the "Shipper, directly or through its agent or subcontractor, shall be responsible for arranging for a safe and road-worthy chassis, meeting all federal and state regulatory requirements for the land carriage of shipments for which Carrier does not provide chassis." CX00006284 (Houghtalin Dep. Ex. 2) at 284; *see also* Houghtalin (COSCO) Dep., CX00006197 at 63:17-23 (confirming that [REDACTED]).

24. HMM's Tariff Rule No. 21-02, named "Chassis Provision," states: "Merchant Haulage: Where the Carrier is not responsible to provide service beyond CY, port terminal or rail terminal, the Cargo Interest will be responsible for using a safe and roadable chassis and complying with all applicable federal, state and local regulatory requirements for the land carriage of shipments, and their associated costs." CX00006285 (Compton Dep. Ex. 2) 286-87; *see also* Compton Dep., CX00006168 at 38:2-16 ([REDACTED]).

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

25. Yang Ming’s [REDACTED]” states that:

[REDACTED]

CX00006290 (Micena Dep. Ex. 2) at 290; *see also* Micena (Yang Ming) Dep., CX00006163 at 61:19-63:15 (testifying that [REDACTED]
[REDACTED]).

II. RESPONDENT OCEAN CARRIERS’ CONTRACTS WITH IEPS INCLUDE SEVERABILITY CLAUSES.

CMA

26. Pursuant to the January 1, 2017 CMA/TRAC CUA, “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]” *See* January 1, 2017 CMA/TRAC CUA, CX00002586 (Fentress Dep. Ex. 16) at 600.

27. Pursuant to the December 3, 2019 CMA/TRAC CUA, [REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]” See December 3, 2019 CMA/TRAC CUA, CX00002536 (Fentress Dep. Ex. 19) at 553.

COSCO

28. Pursuant to the May 1, 2016 COSCO/TRAC CUA, “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]” See May 1, 2016 COSCO/TRAC CUA, CX00003121 (Houghtalin Dep. Ex. 12) at 129.

29. Pursuant to the July 1, 2018 COSCO/TRAC CUA, “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]” See July 1, 2018 COSCO/TRAC CUA, CX00002782 (Houghtalin Dep. Ex. 20) at 790.

30. Pursuant to the July 1, 2021 COSCO/TRAC CUA, “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]” See July 1, 2021 COSCO/TRAC CUA, CX00003143 (Houghtalin Dep. Ex. 25) at 151.

Evergreen

31. Pursuant to November 28, 2016 Evergreen/TRAC CUA, “[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED].” See November 28, 2016 Evergreen/TRAC CUA, CX00003532 at 544.

32. Pursuant to the December 1, 2017 Evergreen/TRAC CUA, “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].” See December 1, 2017 Evergreen/TRAC CUA, CX00003226 (Wang Dep. Ex. 11) at 241.

33. Pursuant to the October 22, 2019 Evergreen/DCLI EMC CUA, “[REDACTED]
[REDACTED]
[REDACTED].” See October 22, 2019 Evergreen/DCLI EMC CUA, CX00003754 at 767.

Hapag-Lloyd

34. Pursuant to the December 21, 2012 Hapag-Lloyd/TRAC CUA, “[REDACTED]
[REDACTED]
[REDACTED].” See December 21, 2012 Hapag-Lloyd/TRAC CUA, CX00004010 at 017.

35. Pursuant to the December 21, 2012 Hapag-Lloyd/DCLI CUA, “[REDACTED]
[REDACTED]
[REDACTED].” See December 21, 2012 Hapag-Lloyd/DCLI CUA, CX00004049 at 056.

36. Pursuant to the January 1, 2013 Hapag-Lloyd/Flexi-Van CUA, “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].” See January 1, 2013 Hapag-Lloyd/Flexi-Van CUA, CX00003948 (Barattini Dep. Ex. 8) at 957.

37. Pursuant to the January 1, 2016 Hapag-Lloyd/DCLI CUA, “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].” See January 1, 2016 Hapag-Lloyd/DCLI CUA, CX00004101 (Barattini Dep. Ex. 9) at 108.

38. Pursuant to the January 1, 2016 Hapag-Lloyd/TRAC CUA, “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].” See January 1, 2016 Hapag-Lloyd/TRAC CUA, CX00004115 at 139.

39. Pursuant to the October 1, 2018 Hapag-Lloyd/DCLI CUA, “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].” See October 1, 2018 Hapag-Lloyd/DCLI CUA, CX00003894 at 902.

40. Pursuant to the January 1, 2019 Hapag-Lloyd/TRAC CUA, “[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED].” See January 1, 2019 Hapag-Lloyd/TRAC CUA, CX00003906 at 919.

HMM

41. Pursuant to the June 19, 2013 HMM/DCLI CUA, “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].” See June 19, 2013 HMM/DCLI CUA, CX00004382 (Compton Dep. Ex. 8) at 423.

42. Pursuant to the November 30, 2017 HMM/DCLI CUA, “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].” See November 30, 2017 HMM/DCLI CUA, CX00004191 (Compton Dep. Ex. 12) at 202.

Maersk

43. Pursuant to the January 1, 2015 Maersk/DCLI CUA, “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].” See January 1, 2015 Maersk/DCLI CUA, CX00004613 (Weisberg Dep. Ex. 5) at 627.

44. Pursuant to the July 1, 2018 Maersk/TRAC CUA, “[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED].” See July 1, 2018 Maersk/TRAC CUA, CX00004652 at 672.

MSC

45. Pursuant to the March 26, 2015 MSC/DCLI CUA, “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].” See March 26, 2015 MSC/DCLI CUA, CX00004551 (Roveccio Dep. Ex. 21) at 561.

ONE

46. Pursuant to the March 1, 2018 ONE/TRAC GTC, “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].” See March 1, 2018 ONE/TRAC GTC, CX00005429 (Armstrong Dep. Ex. 5) at 438.

47. Pursuant to the June 1, 2020 ONE/FVLI CUPA, “[REDACTED]
[REDACTED]
[REDACTED].” See June 1, 2020 ONE/FVLI CUPA, CX00005382 (Armstrong Dep. Ex. 11) at 393.

Wan Hai

48. Pursuant to the February 1, 2016 Wan Hai/TRAC CUA, “[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED].” See February 1, 2016 Wan Hai/TRAC CUA, CX00005777 (Chung Dep. Ex. 5) at 784.

49. Pursuant to the April 1, 2020 Wan Hai/TRAC CUA, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].” See April 1, 2020 Wan Hai/TRAC CUA, CX00005789 (Chung Dep. Ex. 7) at 796.

Yang Ming

50. Pursuant to the October 1, 2013 Yang Ming/TRAC CUA, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].” See October 1, 2013 Yang Ming/TRAC CUA, CX00006027 (Micena Dep. Ex. 13) at 035.

51. Pursuant to the May 1, 2014 Yang Ming/TRAC COCP CUA, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].” See May 1, 2014 Yang Ming/TRAC COCP CUA, CX00006013 (Micena Dep. Ex. 14) at 021.

52. Pursuant to the May 1, 2014 Yang Ming/TRAC LABP CUA, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].” See May 1, 2014 Yang Ming/TRAC LABP CUA, CX00005987 (Micena Dep. Ex. 28) at 995.

53. Pursuant to the January 1, 2017 Yang Ming/TRAC CUA, “[REDACTED]”
[REDACTED]
[REDACTED]
[REDACTED].” See January 1, 2017 Yang Ming/TRAC CUA, CX00005859 (Micena Dep. Ex. 18) at 867-68.

54. Pursuant to the January 1, 2020 Yang Ming/TRAC CUA, “[REDACTED]”
[REDACTED]
[REDACTED]
[REDACTED].” See January 1, 2020 Yang Ming/TRAC CUA, CX00005832 (Micena Dep. Ex. 25) at 840.

ZIM

55. The March 1, 2016 ZIM/TRAC CUA incorporated “[REDACTED]”
[REDACTED]
[REDACTED].” See March 1, 2016 ZIM/TRAC CUA, CX00006040 (Messing Dep. Ex. 18) at 040.

56. Pursuant to the January 1, 2016 TRAC Intermodal General Terms and Conditions for Equipment User Agreement, “[REDACTED]”
[REDACTED]
[REDACTED]
[REDACTED].” CX00006295 at 305.

Respectfully submitted,

DATED: May 27, 2022

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